DATED THE ..... DAY OF 2026

NEXGENIUS CONCIERGE LIMITED

AND

.....

MERCHANT AGREEMENT

RESTAURANTS & FOOD MERCHANTS

MERCHANT AGREEMENT

THIS MERCHANT AGREEMENT is made on the _____ day of _____, 2026

BETWEEN:

NEXGENIUS CONCIERGE LIMITED, a company duly incorporated under the laws of Kenya, of Certificate of Incorporation Number PVT-L51DZJ32, and of P.O. Box _____, Nairobi, Kenya (the "**Company**", which expression includes its successors and assigns);

AND:

_____ (Merchant business name), a business duly registered in Kenya under registration number _____, of _____ (address), KRA PIN _____ (the "**Merchant**").

BACKGROUND

(A) The Company operates the Platform, through which End-Users order goods and services from independent merchants.

(B) The Merchant carries on business preparing and selling food and non-alcoholic beverages and wishes to list on the Platform prepared food and non-alcoholic beverages for delivery or collection.

(C) The Company has agreed to list the Merchant's Offerings in the Restaurants & Food category on the terms of this Agreement, which include the requirements specific to that category.

THE PARTIES AGREE as follows:

1. Definitions and Interpretation

1.1 In this Agreement, unless the context requires otherwise:

"Agreement" means this Merchant Agreement, including Annex A (Commission Schedule), Annex B (Onboarding Warranties), Annex C (Notice and Contact Details) and Annex D (Dispute Resolution Timetable).

"Applicable Law" means all laws, regulations, by-laws, licence conditions, codes and binding directions of any competent authority in Kenya that apply to a Party, the Platform or the Offerings, including the Consumer Protection Act, 2012, the Data Protection Act, 2019, the Public Health Act (Cap. 242), the Food, Drugs and Chemical Substances Act and applicable county food-hygiene legislation.

"Business Day" means a day other than a Saturday, a Sunday or a public holiday in Kenya.

"Category" means the Restaurants & Food category of merchants on the Platform.

"Commission" means the commission payable by the Merchant to the Company under clause 8 and Annex A.

"Data Processing Agreement" means the data processing agreement between the Parties, in the form issued by the Company, that governs the Merchant's processing of End-User personal data received through the Platform.

"Dispute" has the meaning given in clause 17.1.

"End-User" means any person who places an Order through the Platform.

"Offerings" means the goods and services described in clause 2.1.

"Order" means an order, booking or request for Offerings placed by an End-User through the Platform.

"Parties" means the Company and the Merchant, and **"Party"** means either of them.

"Platform" means the NexGenius digital platform, including its website, mobile applications and other channels, operated by the Company.

"Property Partner" means a hotel, serviced residence or other property operator that has entered into a Property Partner Agreement with the Company under which End-Users at the property may place Orders in-room through the Platform.

"Refund, Cancellation and Complaints Policy" means the Company's policy of that name, as published on the Platform or notified to the Merchant, as amended under clause 19.3.

"Rider" means a person engaged by or on behalf of the Company under the Company's Rider Independent Contractor Agreement to collect and deliver Orders.

"Settlement Cycle" means the settlement frequency selected under Annex A.

1.2 In this Agreement:

(a) headings are for convenience only and do not affect interpretation;

(b) a reference to a statute includes that statute as amended or re-enacted and any subsidiary legislation made under it;

(c) the word "including" is not a word of limitation;

(d) "written" and "in writing" include email;

(e) a reference to a number of days is to calendar days unless Business Days are specified, and where a period ends on a day that is not a Business Day it ends on the next Business Day; and

(f) the Annexes form part of this Agreement.

2. Appointment and Scope

2.1 The Company appoints the Merchant, on a non-exclusive basis, to list and offer through the Platform prepared food and non-alcoholic beverages for delivery or collection, and the Merchant accepts that appointment on the terms of this Agreement.

2.2 The Offerings are limited to prepared food and beverages (non-alcoholic) for delivery or collection. The Merchant shall not list or supply goods or services outside the Category without the Company's prior written approval, which may be conditional on additional terms.

2.3 Nothing in this Agreement creates a partnership, joint venture, agency (save the limited payment collection agency at clause 8.3) or employment relationship between the Parties. The Merchant remains an independent business responsible for its own staff, licensing and regulatory compliance, and is responsible to End-Users for the Offerings it supplies.

3. Onboarding and Activation

3.1 The Merchant shall complete the Company's onboarding process, including verification of its business registration, the licences, permits and certificates required for the Category (food handling or health certificates and county health or business permit), its tax

registration (KRA PIN), and its bank or mobile-money settlement details, before activation on the Platform.

3.2 The Merchant's onboarding warranties are set out in Annex B and are incorporated into and form part of this Agreement.

3.3 The Company may verify any document or information supplied by the Merchant and may decline or delay activation until it is satisfied. The Merchant shall provide copies of the documents listed in Annex B within five (5) Business Days of the Company's written request.

4. Licences, Permits and Regulatory Compliance

4.1 The Merchant shall at all times hold, and keep valid, all licences, permits, registrations and approvals required by Applicable Law to carry on its business and to supply the Offerings.

4.2 The Merchant shall hold, in accordance with the Public Health Act (Cap. 242) and applicable county food-hygiene legislation:

(a) a valid food handling or health certificate for food handlers; and

(b) a valid county health or business permit for the food preparation premises.

4.3 The Merchant shall provide evidence of each licence, permit, certificate and registration required by this clause within five (5) Business Days of the Company's written request, and evidence of renewal on or before the expiry of the document renewed.

4.4 The Merchant shall notify the Company immediately, and in any event within twenty-four (24) hours, of the suspension, revocation, lapse or non-renewal of, or any adverse regulatory finding in relation to, any licence, permit, certificate or registration required by this clause, and shall immediately cease the activity affected. The Company may suspend the Merchant's listings under clause 15.6 on receiving that notice or otherwise becoming aware of the event.

5. Listing and Content Requirements

5.1 The Merchant shall maintain accurate and current listings, including pricing, availability and descriptions of the Offerings, and shall promptly update the Platform when an Offering becomes unavailable.

5.2 In addition, the following requirements apply to listings in the Category:

(a) each listing must give accurate allergen and ingredient information, where reasonably available; and

(b) menu items and prices listed on the Platform must match those charged at the point of preparation.

6. Order Fulfilment and Handling

6.1 The Merchant shall accept, prepare and hand over Orders to the Rider or the End-User within the timeframes indicated on the Platform, with reasonable skill, care and diligence, and shall at all times maintain the food safety and hygiene standards that apply to the Offerings.

6.2 The Merchant shall package Orders adequately for transport and shall not include any item that was not ordered or any unlawful item.

6.3 In addition, the following requirements apply:

(a) food shall be prepared, packaged and held at safe temperatures in accordance with applicable public health guidance; and

(b) packaging shall be suitable to preserve food safety and quality in transit.

7. Prohibited Conduct

7.1 The Merchant shall not engage in any of the following conduct:

(a) listing or supplying goods or services outside the Category without the Company's prior written approval;

(b) supplying any unlawful item or service; or

(c) misrepresenting the Offerings, their pricing or their availability.

8. Fees, Commission and Settlement

8.1 The Merchant shall pay the Company a commission on each completed Order, calculated in accordance with the Commission Schedule at Annex A.

8.2 The Company shall remit to the Merchant the Order value net of the applicable Commission and any agreed processing fee, on the Settlement Cycle set out in Annex A, into the bank or mobile-money account nominated by the Merchant.

8.3 Where the Company collects payment from the End-User on the Merchant's behalf, the Company does so as a limited payment collection agent of the Merchant solely for the purpose of facilitating settlement, and holds those funds, pending settlement, for the account of the Merchant less the Commission due to the Company.

8.4 The Company may withhold or offset settlement against amounts due to it for Commission, refunds, chargebacks or verified customer complaints attributable to the Merchant. The Company shall show each amount withheld or offset, and the reason, on the settlement statement.

8.5 The Company shall make a settlement statement available on the Merchant's dashboard for each Settlement Cycle. The Merchant shall raise any query about a statement in writing, with particulars, within ten (10) Business Days of the statement becoming available, and the Company shall respond in writing within ten (10) Business Days of receiving it. A statement not queried within that period is deemed accepted, save for manifest error, fraud and refunds or chargebacks verified after the statement date. A query that is not resolved within the Company's response period is a Dispute and may be referred under clause 17; the Company shall pay the undisputed part of the settlement in the ordinary course and may withhold only the amount reasonably in dispute.

8.6 Each Party is responsible for its own taxes. The Company may deduct or withhold from any payment any tax that Applicable Law requires it to deduct or withhold.

9. Cancellations and Refunds

9.1 Cancellations and refunds shall be handled in accordance with the Refund, Cancellation and Complaints Policy, which the Merchant agrees to honour for Orders attributable to Merchant error, including incorrect items, spoiled or defective goods, or failure to fulfil an accepted Order.

9.2 Amounts refunded or compensated to End-Users for Merchant error may be recovered from the Merchant under clause 8.4.

10. Merchant Warranties

10.1 The Merchant warrants that it holds all licences, permits and regulatory approvals required to lawfully sell the goods or services listed, that those goods and services comply with Applicable Law (including the Consumer Protection Act, 2012, the Data Protection Act, 2019, the Public Health Act (Cap. 242), the Food, Drugs and Chemical Substances Act and applicable county food-hygiene legislation), and that it will maintain that compliance throughout the term of this Agreement.

10.2 The Merchant warrants that pricing displayed on the Platform will not exceed the Merchant's standard in-store or direct pricing for the same item, save for a clearly disclosed delivery or platform premium agreed with the Company.

11. Insurance

11.1 The Merchant shall maintain all insurance that Applicable Law requires for its business.

12. Liability and Indemnity

12.1 As between the Parties, the Merchant is solely responsible for the quality, safety, condition and lawfulness of the Offerings it supplies. Any act or omission directly attributable to the quality of the service or goods delivered by the Merchant, its staff, drivers, practitioners, agents or subcontractors is the sole liability of the Merchant.

12.2 The Merchant is responsible for food safety and quality up to handover to the Rider or the End-User.

12.3 The Merchant shall indemnify the Company, its directors, officers and employees against all losses, claims, fines, penalties, costs and expenses (including reasonable legal fees) arising out of:

(a) the Merchant's breach of this Agreement or of Applicable Law;

(b) any defect in, or injury, death, loss or damage caused by, the Offerings; or

(c) any claim that the Merchant's content infringes the rights of a third party.

12.4 Save for liability which cannot be excluded under Kenyan law, the Company's aggregate liability to the Merchant under this Agreement shall not exceed the total Commission paid by the Merchant to the Company in the three (3) months preceding the claim.

12.5 Save for liability which cannot be excluded under Kenyan law, the Company is not liable to the Merchant for any loss of profit, revenue or goodwill, or for any indirect or consequential loss.

13. Data Protection

13.1 Each Party shall comply with the Data Protection Act, 2019 in respect of personal data shared under this Agreement. Where the Merchant processes End-User personal data received through the Platform, the Data Processing Agreement applies and is incorporated by reference.

13.2 The Merchant shall not use End-User contact details obtained through the Platform for direct marketing outside the Platform without the End-User's separate consent.

14. Intellectual Property and Branding

14.1 Each Party retains ownership of its own trademarks, logos and content. The Merchant grants the Company a non-exclusive licence to display the Merchant's name, logo, menu and related content on the Platform and in the Company's marketing, for the term of this Agreement, and warrants that it has the right to grant that licence.

15. Term, Suspension and Termination

15.1 This Agreement commences on the date of onboarding approval and continues until terminated by either Party on thirty (30) days' written notice, or earlier under this clause.

15.2 The Company may terminate this Agreement immediately by written notice if:

(a) the Merchant breaches clause 10 (Merchant Warranties) or clause 4 (Licences, Permits and Regulatory Compliance);

(b) there are repeated verified customer complaints;

(c) the Company suspects fraud;

(d) the Merchant loses a licence required to trade; or

(e) the Merchant commits any other material breach of this Agreement that is not remedied within seven (7) days of written notice requiring remedy.

15.3 Without limiting clause 15.2, the following events specific to the Category entitle the Company to suspend or terminate the Merchant's listing immediately by written notice:

(a) loss, suspension or lapse of any food handling certificate or county health or business permit required under clause 4.

15.4 The Merchant may terminate this Agreement immediately by written notice if the Company commits a material breach of this Agreement that is not remedied within fourteen (14) days of written notice requiring remedy.

15.5 A complaint is "verified" when the Company has investigated it, having given the Merchant a reasonable opportunity (of not less than two (2) Business Days, save where the matter is urgent) to respond, and has found it substantiated.

15.6 The Company may suspend the Merchant's listings immediately, by Platform status change or written notice, where it reasonably suspects an event in clause 15.2 or clause 15.3 has occurred, where a regulator or Applicable Law so requires, or where End-User safety is at risk. Suspension does not affect the Company's rights under clause 8.4.

15.7 On termination: (a) outstanding settlement due to the Merchant shall be paid within the next scheduled Settlement Cycle, less any amounts properly withheld under clause 8.4; (b) the Merchant shall complete any Order accepted before the termination date unless the Company directs otherwise on safety or regulatory grounds, in which case the Company may cancel the Order and refund the End-User, and recover the cost from the Merchant under clause 8.4; and (c) the Company shall remove the Merchant's listings from the Platform.

16. Notices

16.1 A notice under this Agreement, including a Dispute Notice, must be in writing in English and delivered by hand or courier to the postal address, or sent by email to the email address, of the receiving Party stated in Annex C (or as changed under this clause).

16.2 A notice is deemed received: (a) if delivered by hand or courier, on delivery, or if delivered after 5:00 pm or on a day that is not a Business Day, on the next Business Day; and (b) if sent by email, when sent, or if sent after 5:00 pm or on a day that is not a Business Day, on the next Business Day, unless the sender receives a delivery-failure message.

16.3 A Party may change its notice details by giving the other Party five (5) Business Days' notice.

16.4 Routine operational messages, Order notifications and settlement statements may be given through the Platform or the Merchant's dashboard. A suspension under clause 15.6 takes effect on the Platform status change or email notice, whichever is first.

17. Dispute Resolution

17.1 In this clause, **"Dispute"** means any dispute, controversy or claim arising out of or in connection with this Agreement, including its formation, interpretation, performance, validity, breach or termination.

17.2 The Parties shall resolve every Dispute exclusively through the following stages, in this order:

(a) negotiation, in two tiers, under clauses 17.4 to 17.6;

(b) mediation, administered by the Nairobi Centre for International Arbitration, under clauses 17.7 to 17.13; and

(c) if the Dispute is not settled, proceedings in court under clause 18.

17.3 A Party that wishes to raise a Dispute shall give the other Party a written notice (a **"Dispute Notice"**) under clause 16 stating:

(a) the nature of the Dispute and the facts relied on;

(b) the provisions of this Agreement concerned;

(c) the outcome or relief sought, including any amount claimed; and

(d) the name and contact details of the Party's designated representative.

The date on which the Dispute Notice is deemed received is the **"Notice Date"**.

17.4 **Stage 1: designated representatives.** The receiving Party shall confirm the name and contact details of its designated representative within three (3) Business Days of the Notice Date. The designated representatives shall meet, in person in Nairobi or by video conference, within seven (7) days of the Notice Date and shall make a good-faith attempt to resolve the Dispute. Each Party shall give the other, within five (5) Business Days of a written request, the documents reasonably needed to understand the Dispute. Stage 1 ends fourteen (14) days after the Notice Date.

17.5 **Stage 2: senior executives.** If the Dispute is not resolved in writing by the end of Stage 1, it is automatically escalated to the Company's Chief Executive Officer (or another director of the Company) and the Merchant's owner, managing director or other principal with authority to settle. They shall meet, in person in Nairobi or by video conference, within seven (7) days of escalation and shall make a good-faith attempt to resolve the Dispute.

17.6 The negotiation period ends thirty (30) days after the Notice Date (the **"Negotiation Period"**). Any settlement reached in negotiation binds the Parties only if recorded in writing and signed by both Parties. Discussions in negotiation are confidential and without prejudice.

17.7 **Referral to mediation.** Mediation under this clause shall be administered by the Nairobi Centre for International Arbitration (the **"NCIA"**) under the Nairobi Centre for International Arbitration (Mediation) Rules, 2015, as in force when the mediation commences (the **"NCIA Mediation Rules"**). If the Dispute is not resolved in writing within the Negotiation Period, either Party may refer it to mediation, at any time after the Negotiation Period ends, by filing a written request for mediation in Form A of the NCIA Mediation Rules (a **"Request"**) with the Registrar of the NCIA, with a copy to the other Party.

17.8 The Party receiving the Request shall, within five (5) Business Days of receiving it, give the Registrar and the requesting Party written confirmation that it accepts the Request and will participate. The Parties acknowledge that, by signing this Agreement, they have agreed to mediate under this clause. If the receiving Party does not confirm within fifteen (15) Business Days of receiving the Request, the requirement to mediate is treated as satisfied for the purposes of clause 17.15, without affecting the Party's liability for its breach of this clause.

17.9 **Appointing body and mediator.** The NCIA is the appointing body for the mediation. There shall be one mediator, an accredited mediator on the NCIA's panel (or otherwise qualified under rule 10 of the NCIA Mediation Rules) who is independent and impartial and who, where reasonably available, has experience of commercial or online marketplace disputes in the Merchant's sector. The Parties shall jointly appoint the mediator within five (5) days of the NCIA receiving the acceptance. If they do not, the Registrar shall propose and appoint a mediator under rule 8 of the NCIA Mediation Rules, and the Parties authorise the Registrar to appoint a mediator at the Registrar's discretion if none has been confirmed within twenty (20) days of the NCIA receiving the acceptance.

17.10 If the NCIA is unable or unwilling to administer the mediation, or has not appointed a mediator within thirty (30) days of the Request, either Party may apply to the Chartered Institute of Arbitrators (Kenya Branch) to appoint an accredited mediator. The mediation shall then proceed under this clause and under such procedure as the mediator, after consulting the Parties, considers appropriate.

17.11 **Conduct of the mediation.** The mediator shall hold a preliminary conference within seven (7) days of the mediator's confirmation, at which the Parties shall identify the issues, agree the exchange of position papers and documents, and settle the mediator's terms of engagement. The first mediation session shall be held within fourteen (14) days of the mediator's confirmation. Sessions shall be held in Nairobi (at the NCIA or another agreed venue) or by video conference, and in English. Each Party shall attend through a representative with full authority to settle the Dispute, may be legally represented, and shall act in good faith and cooperate with the mediator. The Parties and all participants shall keep the mediation confidential and shall sign the confidentiality undertaking in the NCIA Mediation Rules. Settlement proposals, admissions and statements made in the mediation are without prejudice and shall not be relied on in any later proceedings.

17.12 **Duration and end of mediation.** The mediation shall be concluded within sixty (60) days of the mediator's confirmation and in any event within ninety (90) days of the date of the Request, unless the Parties agree in writing to extend that period. The mediation ends on the earliest of:

(a) the Parties signing a written settlement agreement;

(b) the mediator declaring in writing, after consulting the Parties, that further attempts at mediation are unnecessary;

(c) a Party declaring in writing to the mediator that it terminates the mediation;

(d) the expiry of the period in this clause; and

(e) termination by the NCIA under the NCIA Mediation Rules.

17.13 **Settlement.** A settlement reached in mediation must be in writing and signed by authorised representatives of both Parties. It binds the Parties as a contract, and each Party shall perform it within the time it specifies or, if it specifies none, within fourteen (14) days of signature. Either Party may apply to the court to have the settlement recorded as a consent order.

17.14 As between the Parties, each Party bears its own legal and representation costs, and the NCIA's registration, administrative and appointment fees, the mediator's fees and the venue costs are shared equally, regardless of the outcome, unless the settlement agreement provides otherwise. A Party that pays more than its equal share of those costs to the NCIA or the mediator may recover the excess from the other Party as a debt.

17.15 If the mediation ends without a settlement, or the requirement to mediate is treated as satisfied under clause 17.8, either Party may commence proceedings in court under clause 18. Neither Party may commence court proceedings in respect of a Dispute before then, save as clause 17.16 permits.

17.16 Nothing in this clause prevents a Party from:

(a) applying to the court for urgent interim or conservatory relief, including an injunction or preservation order, to protect its rights, property or End-User safety;

(b) commencing proceedings to the extent necessary to stop a limitation period expiring, in which case it shall, unless the court orders otherwise, seek a stay of those proceedings until this clause has been followed;

(c) reporting to, or cooperating with, a regulator, a law-enforcement agency or any statutory complaints process; or

(d) exercising its rights of suspension, termination, withholding and offset under clauses 8.4, 15.6 and 15.7 (although a challenge to the exercise of those rights is a Dispute).

17.17 While a Dispute is being resolved under this clause, each Party shall continue to perform its obligations that are not in dispute, and the period during which the Parties follow this clause does not count towards any time limit in this Agreement for bringing a claim. The Parties may extend any period in this clause by written agreement.

17.18 The NCIA is appointed under this clause solely to administer mediation. The Parties have not agreed to arbitration, and no Dispute shall be referred to arbitration under or in connection with this Agreement.

18. Governing Law and Jurisdiction

18.1 This Agreement, and any Dispute, is governed by and shall be construed in accordance with the laws of Kenya.

18.2 Subject to clause 17, the courts of Kenya sitting in Nairobi that have jurisdiction over the subject matter and value of the claim have exclusive jurisdiction over any Dispute, and each Party submits to that jurisdiction.

19. General

19.1 If there is a conflict between a provision of this Agreement that applies specifically to the Category (being clauses 4, 5, 6, 7, 11 and 15.3) and any other provision of this Agreement, the Category-specific provision prevails in respect of the Category. Annex A prevails as to Commission and settlement.

19.2 This Agreement, with the Refund, Cancellation and Complaints Policy and the Data Processing Agreement, is the entire agreement between the Parties about its subject matter and supersedes all earlier negotiations, understandings and agreements about it. Nothing in this clause limits liability for fraud.

19.3 This Agreement may be varied only in writing signed by both Parties. The Company may update the Refund, Cancellation and Complaints Policy and its Platform operating guidelines on not less than fourteen (14) days' written notice to the Merchant, and the Merchant may terminate this Agreement under clause 15 if it objects to the update.

19.4 The Merchant shall not assign, transfer or subcontract any of its rights or obligations under this Agreement without the Company's prior written consent, and remains responsible for any subcontractor. The Company may assign this Agreement to a successor to its business on written notice to the Merchant.

19.5 If any provision of this Agreement is held invalid or unenforceable, the remaining provisions continue in force. A failure or delay in exercising a right is not a waiver of it.

19.6 Neither Party is liable for delay or failure to perform caused by an event beyond its reasonable control, provided that it notifies the other Party promptly and takes reasonable steps to limit the effect. This does not excuse a payment obligation or the loss of a licence. If the event continues for more than thirty (30) days, either Party may terminate this Agreement on written notice.

19.7 Clauses 8 (as to accrued amounts), 12, 13, 15, 16, 17, 18 and this clause 19 survive termination, together with any right accrued before termination.

19.8 This Agreement may be signed in counterparts and by electronic signature, each of which is an original and all of which together are one agreement.

IN WITNESS WHEREOF the Parties have executed this Agreement on the date first written above.

SIGNED for and on behalf of **NEXGENIUS CONCIERGE LIMITED**	..... Name: _____ CEO and Executive Director
In the presence of:	..... Name: _____ ADVOCATE
SIGNED for and on behalf of the **MERCHANT**	..... Name: _____ Title: _____
In the presence of:	..... Name: _____ ADVOCATE

ANNEX A — COMMISSION SCHEDULE

Restaurants & Food Merchants

A.1 Commission Rates

Merchant Category	Standard Commission	Notes
Restaurants & Food merchants	____ % of Order value (excluding the delivery fee)	Rate confirmed in the Merchant's onboarding letter.
Property Partner in-room orders (where applicable)	____ % of Order value, split per the Property Partner Agreement	Applies only to Orders placed through a Property Partner

No category-specific commission or fee applies to the Category other than as stated in this Annex.

A.2 Settlement Cycle

- Settlement frequency (select on onboarding): ☐ Weekly ☐ Bi-weekly, into the Merchant's nominated account.
- Settlement statements are made available on the Merchant dashboard showing gross Order value, Commission deducted, adjustments and net payout.
- The minimum settlement threshold and any applicable processing fee are confirmed in the Merchant's onboarding letter.

A.3 Adjustments

- Verified refunds, chargebacks and confirmed complaint compensation attributable to the Merchant will be deducted from the next Settlement Cycle.
- Any promotional discount funded by the Company will not reduce the Merchant's net payout unless otherwise agreed in writing.

A.4 Settlement Queries

- Queries about a settlement statement are raised and answered within the time limits in clause 8.5.

ANNEX B — ONBOARDING WARRANTIES

Restaurants & Food Merchants

The Merchant confirms and warrants, as a condition of activation on the Platform, that:

- it is a duly registered business in Kenya, holding a valid business registration or incorporation certificate;
- it holds a valid KRA PIN and is compliant with its applicable tax obligations, including VAT registration where its turnover requires it;
- it holds all sector-specific licences applicable to its goods and services (food handling or health certificates and county health or business permit) and will provide copies on request, within the time stated in clause 3.3;
- its nominated settlement account (bank or mobile money) is held in the name of the Merchant business or its authorised proprietor;
- the individual completing onboarding on the Merchant's behalf has authority to bind the Merchant to this Agreement;
- it will notify the Company promptly, and in any event within five (5) Business Days, of any change to its licensing status, ownership or settlement account details (and, for the events in clause 4.4, within the time stated there); and
- it has not been suspended or delisted from another delivery, transport or marketplace platform for fraud, food-safety, safety, regulatory or consumer-protection reasons, or, if it has, has disclosed this to the Company in writing before onboarding.

ANNEX C — NOTICE AND CONTACT DETAILS

For notices under clause 16 and for the Dispute Resolution process under clause 17

Item	The Company	The Merchant
Name of party	NexGenius Concierge Limited	
Postal address	P.O. Box _____, Nairobi, Kenya	
Email for notices		
Telephone		
Designated representative (Stage 1)	Name: _____ Title: _____	Name: _____ Title: _____
Senior executive (Stage 2)	Chief Executive Officer or another director	Owner / managing director / principal: _____

ANNEX D — DISPUTE RESOLUTION TIMETABLE

Summary only. Clause 17 prevails if there is any difference.

No.	Step	Responsible	Time limit	Clause
1	Dispute Notice served (the Notice Date, Day 0)	Party raising the Dispute	Any time	17.3
2	Receiving Party confirms its designated representative	Receiving Party	Three (3) Business Days from the Notice Date	17.4
3	Stage 1: designated representatives meet	Both Parties	Within seven (7) days of the Notice Date; Stage 1 ends Day 14	17.4
4	Stage 2: senior executives meet	Both Parties	Within seven (7) days of escalation; Negotiation Period ends Day 30	17.5, 17.6
5	Request for mediation (Form A) filed with the NCIA Registrar	Either Party	After the Negotiation Period ends	17.7
6	Receiving Party accepts the Request	Receiving Party	Five (5) Business Days from receipt (treated as satisfied after fifteen (15) Business Days)	17.8
7	Mediator appointed (NCIA appointing body)	Both Parties; then NCIA Registrar	Joint appointment within five (5) days of NCIA receiving acceptance; Registrar may appoint if none confirmed within twenty (20) days	17.9
8	Fallback appointment (Chartered Institute of Arbitrators (Kenya Branch))	Either Party	If NCIA unable or unwilling, or no appointment within thirty (30) days of the Request	17.10
9	Preliminary conference	Parties and mediator	Within seven (7) days of mediator's confirmation	17.11
10	First mediation session	Parties and mediator	Within fourteen (14) days of mediator's confirmation	17.11
11	Mediation concludes	Parties and mediator	Within sixty (60) days of mediator's confirmation and no later than ninety (90) days from the Request, unless extended in writing	17.12
12	Settlement implemented	Both Parties	As stated in the settlement, otherwise within fourteen (14) days of signature	17.13
13	Court proceedings (only if no settlement)	Either Party	After the mediation ends without settlement; interim relief available at any time	17.15, 17.16